

Enforcement of securities regulation: comparison of institutional structures

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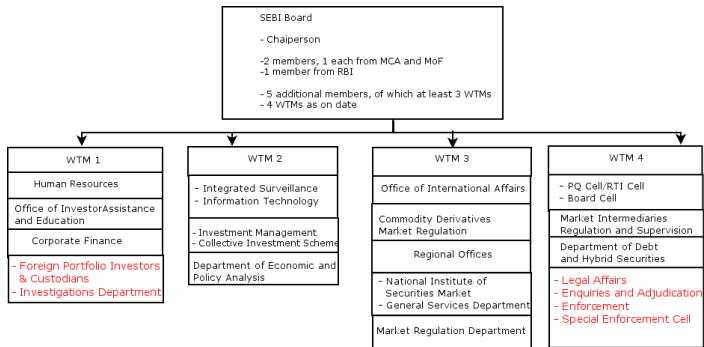
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Separation of executive, legislative and quasi-judicial powers

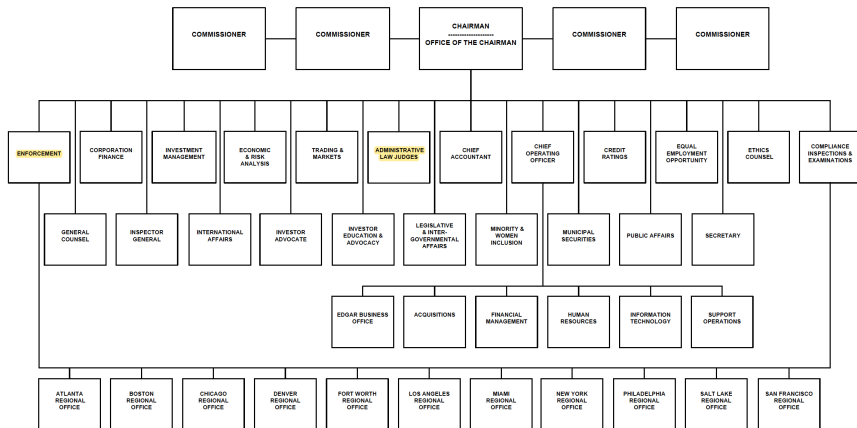
Report of the Financial Sector Legislative Reforms Commission (2013):

“Once an investigation has taken place, and the supervisory team within a regulator believes there have been violations, the principles of public administration suggest that the actual order should be written by disinterested party.”

Organisation structure of SEBI



Organisation structure: Securities Exchange Commission



Financial Conduct Authority: Description of investigation and enforcement process

1. Investigation
2. Report on preliminary findings:
 - ▶ No penalty yet
3. Options before the person under investigation:
 - ▶ Settlement
 - ▶ Submissions before the Regulatory Decisions Committee (RDC), which:
 - ▶ comprises practitioners and non-practitioners operationally separate from the rest of the FCA; and
 - ▶ has a team of support staff and its own legal advisers.
 - ▶ Expedited reference to the Tribunal
4. RDC issues a decision notice.
5. Referral to the Tribunal at the instance of the person against whom a decision notice is issued.

New organisation structure: IBBI

ORGANISATIONAL STRUCTURE (AS APPROVED ON JANUARY 16, 2017)

